

LIKELEE AI

Terms and Conditions

For Agencies and Brands

1. Introduction and Acceptance of Terms

Welcome to Likelee AI ("Likelee," "we," "us," or "our"). Likelee AI is a B2B SaaS platform that facilitates AI likeness licensing between talent ("Creators") and the brands and agencies (collectively, "Clients") that wish to use those likenesses in AI-generated content.

By accessing or using the Likelee AI platform at likelee.ai (the "Platform"), creating an account, or clicking "I Agree" during the sign-up process, you ("Agency," "Brand," or "User") agree to be bound by these Terms and Conditions ("Terms"). If you are accepting these Terms on behalf of a company or other legal entity, you represent that you have the authority to bind that entity to these Terms.

If you do not agree to these Terms, you may not access or use the Platform.

2. Definitions

"Platform" means the Likelee AI website, applications, APIs, and all related services.

"Agency" means a talent management firm, modeling agency, sports agency, or similar representation entity that uses the Platform to manage its talent roster and likeness licensing.

"Brand" means a company, advertiser, or marketing entity that uses the Platform to license Creator likenesses for use in campaigns and AI-generated content.

"Creator" means a talent, influencer, model, athlete, or other individual whose likeness is licensed through the Platform.

"Likeness" means a Creator's name, image, voice, face, persona, or any other identifiable characteristic made available for licensing through the Platform.

"License Agreement" means the specific agreement executed between a Brand and a Creator (or their Agency) governing the permitted uses of a Likeness.

"AI-Generated Content" means any image, video, audio, or other media produced using artificial intelligence tools in which a Creator's Likeness is used or depicted.

"Subscription Plan" means the billing tier selected by the Client upon registration, governing access levels and usage limits.

3. Eligibility and Account Registration

To use the Platform, you must: (a) be a legal entity or individual at least 18 years of age; (b) have the authority to enter into legally binding contracts; and (c) complete the registration process and provide accurate, current, and complete information.

You are responsible for maintaining the confidentiality of your account credentials. You agree to notify Likelee immediately of any unauthorized access to or use of your account. Likelee will not be liable for any loss or damage resulting from your failure to safeguard your credentials.

Likelee reserves the right to refuse registration, suspend, or terminate accounts at its sole discretion, including for violation of these Terms or applicable law.

4. Platform Services

4.1 Services for Agencies

Agencies may use the Platform to:

- Onboard and manage their talent roster, including uploading Creator profiles and Likeness assets
- Set licensing terms, usage rights, exclusivity windows, and pricing for each Creator
- Review, approve, or decline Brand licensing requests on behalf of Creators
- Track active License Agreements, usage campaigns, and payment disbursements
- Access analytics dashboards showing licensing revenue, campaign performance, and Creator activity
- Export contracts and licensing documentation for internal records

4.2 Services for Brands

Brands may use the Platform to:

- Browse and search the Creator marketplace to discover talent for AI licensing
- Submit licensing requests specifying use case, campaign duration, platforms, and content type
- Execute License Agreements directly through the Platform's contract management system
- Access licensed Likeness assets in accordance with approved License Agreements
- Manage active campaigns, track usage rights, and store licensing documentation
- Receive compliance alerts regarding expiring licenses and applicable regulations

4.3 Service Availability

Likelee will use commercially reasonable efforts to maintain Platform availability. However, we do not guarantee uninterrupted or error-free service. Scheduled maintenance, technical issues, or circumstances beyond our control may result in temporary unavailability. Likelee will provide advance notice of scheduled downtime where practicable.

5. Subscription Plans, Fees, and Payment

5.1 Subscription Plans

Likelee offers tiered Subscription Plans for both Agencies and Brands. Current pricing, feature access, and usage limits for each tier are published on the Platform's pricing page and may be updated from time to time with advance notice.

5.2 Payment Terms

All fees are billed in advance on a monthly or annual basis, depending on the plan selected. By providing payment information, you authorize Likelee to charge the applicable fees to your payment method on a recurring basis. All fees are non-refundable except as expressly stated herein or required by applicable law.

5.3 Taxes

You are responsible for all applicable taxes, levies, or duties imposed by taxing authorities in connection with your use of the Platform. Likelee will collect applicable taxes where required by law.

5.4 Late Payment and Suspension

If payment is not received by the due date, Likelee reserves the right to suspend access to the Platform. Access will be restored upon receipt of all outstanding amounts. Likelee may also

charge interest on overdue balances at the rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

5.5 Plan Changes

You may upgrade or downgrade your Subscription Plan at any time. Upgrades take effect immediately and are prorated. Downgrades take effect at the start of the next billing period. Likelee reserves the right to modify pricing with 30 days' advance notice to existing subscribers.

6. Likeness Licensing and Intellectual Property

6.1 License Grants

All Likeness licensing on the Platform is governed by individual License Agreements executed between Brands and Creators (or their Agencies). Likelee facilitates but is not a party to these License Agreements. Likelee does not transfer ownership of any Creator Likeness or intellectual property rights.

6.2 Permitted Uses

Brands may only use a licensed Likeness: (a) in the specific manner, for the specific platforms, and within the specific timeframe set forth in the applicable License Agreement; (b) in compliance with all applicable laws, including synthetic media disclosure and AI transparency requirements; and (c) in a manner that does not misrepresent or defame the Creator.

6.3 Prohibited Uses

Brands and Agencies expressly agree not to use the Platform or any licensed Likenesses to:

- Create content that is defamatory, obscene, pornographic, harassing, threatening, or otherwise unlawful
- Portray a Creator endorsing a product, candidate, political position, or viewpoint not expressly authorized in the License Agreement
- Generate deceptive deepfakes, non-consensual intimate imagery, or synthetic content intended to defraud
- Use a Creator's Likeness beyond the scope, duration, geography, or platforms specified in the License Agreement
- Sublicense, resell, or transfer any licensed Likeness to a third party without prior written consent
- Circumvent or interfere with the Platform's licensing management, payment, or compliance tracking systems

6.4 Regulatory Compliance

Clients are solely responsible for ensuring their use of AI-Generated Content and Creator Likenesses complies with all applicable laws and regulations, including but not limited to: the New York AI Synthetic Performer Disclosure Law (effective June 9, 2026); the NO FAKES Act and any successor federal legislation; applicable state right-of-publicity statutes; the FTC's endorsement and disclosure guidelines; and any platform-specific policies governing synthetic media. Likelee may provide compliance tools and alerts as a convenience, but these do not constitute legal advice and do not substitute for independent legal review.

6.5 Likelee's Intellectual Property

The Platform, including its software, design, branding, and underlying technology, is the exclusive property of Likelee AI and its licensors. These Terms do not grant you any right, title, or interest in the Platform beyond the limited license to use it in accordance with your Subscription Plan and these Terms.

7. Data, Privacy, and Confidentiality

7.1 Privacy Policy

Your use of the Platform is subject to Likelee's Privacy Policy, which is incorporated by reference into these Terms. By using the Platform, you consent to the collection, use, and sharing of your information as described in the Privacy Policy.

7.2 Creator Data

Agencies are responsible for ensuring they have obtained all necessary consents from Creators before uploading their Likeness assets, biographical data, or other personal information to the Platform. Agencies represent and warrant that their use of the Platform complies with applicable data protection laws, including but not limited to the CCPA, GDPR, and any state biometric privacy laws.

7.3 Brand Data

Brands grant Likelee a non-exclusive, royalty-free license to process campaign data, usage information, and other data submitted through the Platform solely for the purpose of providing the Platform's services, generating analytics, and improving the Platform.

7.4 Confidentiality

Each party agrees to maintain the confidentiality of the other party's non-public information disclosed in connection with use of the Platform. This obligation does not apply to information that: (a) is or becomes publicly available through no breach of these Terms; (b) was already known to the receiving party; (c) is independently developed; or (d) must be disclosed by law or court order, provided the disclosing party gives prompt written notice where permitted.

8. Representations and Warranties

8.1 Agency Representations

Each Agency represents and warrants that:

- It has the legal authority and all necessary rights to represent each Creator whose profile and Likeness assets it uploads to the Platform
- Each Creator has provided informed, written consent to license their Likeness for AI-generated commercial content through the Platform
- All information uploaded to the Platform, including Creator profiles and licensing terms, is accurate and not misleading
- It will promptly update the Platform to reflect changes in representation agreements or Creator consent

8.2 Brand Representations

Each Brand represents and warrants that:

- It will use licensed Likenesses only in accordance with the applicable License Agreement and these Terms
 - All AI-Generated Content produced using Creator Likenesses will include required disclosures as mandated by applicable law
 - It will not create AI-Generated Content that misrepresents, defames, or endangers any Creator
 - It has obtained or will obtain all other third-party rights (e.g., music, trademarks) necessary for any content it produces
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9. Indemnification

You agree to indemnify, defend, and hold harmless Likelee AI, its officers, directors, employees, contractors, and agents from and against any claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) your use of the Platform; (b) your breach of these Terms; (c) your violation of any applicable law or regulation;

(d) any claim that your use of a Creator Likeness infringes the rights of any third party; or (e) any dispute between you and a Creator or Agency arising from a License Agreement.

10. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, LIKELEE AI AND ITS AFFILIATES, OFFICERS, DIRECTORS, EMPLOYEES, AND LICENSORS SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING LOSS OF PROFITS, REVENUE, DATA, GOODWILL, OR BUSINESS OPPORTUNITIES, ARISING OUT OF OR RELATED TO YOUR USE OF THE PLATFORM OR THESE TERMS, EVEN IF LIKELEE HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

IN NO EVENT SHALL LIKELEE'S TOTAL CUMULATIVE LIABILITY TO YOU FOR ALL CLAIMS ARISING FROM OR RELATED TO THESE TERMS EXCEED THE GREATER OF: (A) THE TOTAL FEES PAID BY YOU TO LIKELEE IN THE THREE (3) MONTHS IMMEDIATELY PRECEDING THE CLAIM; OR (B) ONE HUNDRED DOLLARS (\$100).

Some jurisdictions do not allow the exclusion or limitation of certain warranties or liabilities. In such jurisdictions, Likelee's liability is limited to the maximum extent permitted by law.

11. Disclaimer of Warranties

THE PLATFORM IS PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. LIKELEE DOES NOT WARRANT THAT THE PLATFORM WILL BE UNINTERRUPTED, SECURE, OR ERROR-FREE, OR THAT ANY DEFECTS WILL BE CORRECTED. LIKELEE MAKES NO WARRANTY REGARDING THE ACCURACY, RELIABILITY, OR COMPLETENESS OF ANY CONTENT ON THE PLATFORM.

12. Term and Termination

These Terms remain in effect for the duration of your Subscription Plan and any renewal period. Either party may terminate the agreement by canceling the subscription before the next billing period.

Likelee may suspend or terminate your account immediately, without notice or liability, if: (a) you materially breach these Terms; (b) you engage in fraudulent, abusive, or illegal activity; (c) continued provision of service would cause harm to Creators, other users, or third parties; or (d) required by law or regulatory authority.

Upon termination: (a) all outstanding License Agreements remain binding on the parties to those agreements; (b) you must immediately cease all use of the Platform; and (c) Likelee may delete your account data in accordance with its data retention policy. Sections 6, 7, 9, 10, 11, and 13 survive termination.

13. Dispute Resolution and Governing Law

13.1 Governing Law

These Terms are governed by and construed in accordance with the laws of the State of New York, without regard to its conflict of law provisions.

13.2 Informal Resolution

Before initiating formal proceedings, parties agree to attempt good-faith resolution of disputes by contacting Likelee at legal@likelee.ai. If the dispute is not resolved within 30 days, either party may proceed with formal dispute resolution.

13.3 Arbitration

Any dispute, claim, or controversy arising from or relating to these Terms or the Platform that cannot be resolved informally shall be resolved by binding arbitration administered by the American Arbitration Association ("AAA") under its Commercial Arbitration Rules. The arbitration shall be conducted in New York, New York. Judgment on the award may be entered in any court of competent jurisdiction.

13.4 Class Action Waiver

TO THE FULLEST EXTENT PERMITTED BY LAW, YOU WAIVE ANY RIGHT TO PURSUE DISPUTES ON A CLASS, CONSOLIDATED, OR REPRESENTATIVE BASIS. ALL DISPUTES MUST BE BROUGHT IN YOUR INDIVIDUAL CAPACITY.

13.5 Exception for Injunctive Relief

Notwithstanding the arbitration provision, either party may seek emergency injunctive or other equitable relief from a court of competent jurisdiction to prevent irreparable harm, including unauthorized use of Likeness or intellectual property.

14. General Provisions

14.1 Modifications to These Terms

Likelee reserves the right to modify these Terms at any time. Material changes will be communicated via email or prominent notice on the Platform at least 14 days before taking effect. Your continued use of the Platform after the effective date constitutes acceptance of the updated Terms.

14.2 Entire Agreement

These Terms, together with the Privacy Policy and any executed Order Forms or Subscription agreements, constitute the entire agreement between you and Likelee with respect to the Platform and supersede all prior or contemporaneous communications.

14.3 Severability

If any provision of these Terms is found to be unenforceable, the remaining provisions will continue in full force and effect.

14.4 Waiver

Likelee's failure to enforce any provision of these Terms will not be deemed a waiver of future enforcement of that or any other provision.

14.5 Assignment

You may not assign these Terms or any rights or obligations hereunder without Likelee's prior written consent. Likelee may assign these Terms freely, including in connection with a merger, acquisition, or sale of substantially all of its assets.

14.6 Force Majeure

Likelee will not be liable for any failure or delay in performance resulting from causes beyond its reasonable control, including but not limited to natural disasters, government actions, pandemics, internet outages, or cyberattacks.

14.7 Notices

Legal notices to Likelee should be sent to: legal@likelee.ai. Likelee will send notices to the email address associated with your account. Notices are effective upon transmission.

Questions? Contact us at operations@likelee.ai

likelee.ai | Empowering the Future of Likeness Licensing